IN THE
SUPREME COURT OF PENNSYLVANIA

No. 11 MM 2022

KERRY BENNINGHOFF, individually, and as Majority Leader of the Pennsylvania House of Representatives,
Petitioner,

v.

2021 LEGISLATIVE REAPPORTIONMENT COMMISSION,
Respondent.

In the Nature of an Appeal from the Final Plan of the 2021 Legislative Reapportionment Commission, Pursuant to Section 17(d) of Article II of the Pennsylvania Constitution and Pennsylvania Rule of Appellate Procedure 3321

PETITION FOR REVIEW

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TABLE OF CONTENTS

INTRODUCTION 1

STATEMENT OF JURISDICTION 7

PARTIES 7

DETERMINATION TO BE REVIEWED 8

CONTROLLING CONSTITUTIONAL PROVISIONS 8

PROCEDURAL BACKGROUND 9

REQUEST FOR RELIEF 37

Benninghoff, in his capacities as Majority Leader of the Pennsylvania House of Representatives, a Member of the Legislative Reapportionment Commission, and a registered voter in Centre County (the "Petitioner") files this Petition for Review, seeking this Court's review of the February 4, 2022 final reapportionment plan ("2021 Final Plan") 1 approved by the 2021 Legislative Reapportionment Commission ("Commission"). In support of the Petition, Petitioner states as follows:

INTRODUCTION

1. This Court has stated that "[i]t is a core principle of our republican form of government 'that the voters should choose their representatives, not the other way around.'" League of Women Voters of Pa. v. Commonwealth, 645 Pa. 1, 8 (2018). The 2021 Final Plan eviscerates that principle. It subordinates the nonpartisan redistricting criteria required by Article II, Section 16 of the Pennsylvania Constitution to "political factors" – i.e., maximizing the number of Democratic- leaning districts – in a manner contrary to the Constitution. Holt v. 2011 Legislative Reapportionment Comm'n (Holt II), 620 Pa. 373, 413 (2013). Statistical evidence of the nature endorsed by this Court in LWV, including simulation analysis, mean- median, and efficiency gap measures further discussed below, confirm that the 2021 Final Plan is an extreme partisan outlier. One Commission Member, the House Minority Leader, put it bluntly in

an October 2021 televised public statement: she expected to achieve a Democratic Party takeover of the House in 2022 through The 2021 Final Plan was adopted on February 4, 2022, but since the Commission Chair has referred to it as the 2021 Final Plan, it will be referred to that way herein for consistency. But in concert with the practice of prior Commissions and the date of passage, it should actually be labelled the 2022 Final Plan. "redistricting."2 The 2022 Plan appears to be the attempted fulfillment of her promise.

2. Although some Members of the Commission have attempted to defend the goal of the 2021 Final Plan as merely being to engineer a sufficient number of Democratic Party-leaning districts to approximate the two-party statewide vote share of the Commonwealth (i.e., proportional representation), a balancing of representational political interests is neither required by the Pennsylvania Constitution, nor can it trump the constitutional redistricting criteria of population equality, compactness and avoiding political subdivision splits except where absolutely necessary. But that is exactly what this map does—and, in so doing, adoption of the plan would violate Article II, Section 16 of the Pennsylvania Constitution as well as the guarantee of Article I, Section 5's "Free and Equal Elections Clause" that requires that "an individual's electoral power not be diminished through any law which discriminatorily dilutes the power of his or her vote..." LWV, 645 Pa. at 120.

3. The updated report of Michael Barber, Ph.D, attached as Appendix A,3 establishes that the 2021 Final Plan is an extreme partisan outlier when compared to Remarks of Hon. Joanna E. McClinton, Oct. 18, 2021, available at https://s3.us-east- 2.amazonaws.com/pagopvideo/634363247.mp4 (last visited Feb. 9, 2022). Dr. Barber submitted his original report based upon the 2021 Preliminary Plan to the Commission on January 7, 2022. His updated report reflects the same analysis, but it is based upon the 2021 Final Plan and the Benninghoff Amendment that were not available at the time he submitted his original report. a representative sample of 50,000 computer-simulated plans of the House districts drawn using only the constitutional criteria set forth in Article II, Section 16 of the Pennsylvania Constitution and no partisan or racial data. Updated Barber Rep. at 5, 11, Fig. 3. Professor Barber's 50,000 simulated plans are consistent with the 2021 Final Plan in terms of population deviation, county and municipal splits, contiguity, and compactness. Id. at 7, Table 1. However, the unbiased simulations reflect that the 2021 Final Plan generates more Democratic-leaning districts than 99.998% of the simulated maps. Id. at 10-11, Fig. 3. The most common outcome in the simulations is 97 Democratic seats, yet the 2021 Final Plan is predicted to result in 107 Democratic seats using an index of 2012-2020 elections. Id. This is a statistically significant finding demonstrating that the dramatically large number of Democratic-

leaning districts in the plan cannot be explained by adherence to the constitutional redistricting criteria set forth in Article II, Section 16 of the Constitution. Kosuke Imai, Ph.D., an expert submitted by the Democratic Caucus of the House, confirmed this finding in his January 14, 2022 testimony.4

4. In addition, other partisan fairness metrics, such as mean-median and efficiency gap, demonstrate that the 2021 Final Plan has a significant partisan bias in favor of Democrats when compared to the simulated plans. Dr. Barber's See Jan. 14, 2022 LRC Hearing at 1:02, available at: http://aws.redistricting.state.pa.us/Redistricting/Resources/Video/11422-LRC-2.mp4 (last visited Feb. 9, 2022). additional analysis reflects that the 2021 Final Plan has a mean-median that is more favorable to Democrats than all but one of the 50,000 simulated plans. Updated Barber Rep. at 55-56, Fig. 27. Similarly, the 2021 Final Plan has an efficiency gap of -.027 that is more favorable to Democrats than any of the 50,000 simulated plans. Id. at 56-59, Fig. 28. By any definition, these metrics demonstrate that the 2021 Final Plan is an extreme partisan outlier.

5. The Commission has attempted to defend the strong partisan bias exhibited in the 2021 Final Plan by arguing that it can be explained by the Commission's goal of intentionally creating a series of districts to supposedly afford more opportunities for minorities to elect candidates of their choice. On multiple

occasions, the Chair of the Commission conceded as much. And throughout the process, the Chair and Democratic members of the Commission, as well as their staff, frequently discussed a desire or need to draw districts predominantly on the basis of race—even "scoring" proposed districts based, in part, on how many 35% minority voting-age population districts were created. However, there was no evidence in the Commission's record—let alone a strong basis in evidence—of legally significant racially-polarized voting to justify drawing districts on the basis of race. Therefore, there was no compelling state interest to classify voters based upon race (a suspect classification that triggers strict scrutiny), and the districts in question run afoul of the Fourteenth and Fifteenth Amendments to the United States Constitution as a matter of controlling federal law. These districts also offend Article I, Section 29 of the Pennsylvania Constitution.

6. But setting that aside, a desire to enhance minority voting strength is not an explanation of the 2021 Final Plan's partisanship. In the House, the 2021 Final Plan unnecessarily reduces minority voting strength in many areas rather than increasing it. Dr. Barber's testimony and updated report demonstrate that a similar number of majority-minority and "opportunity" districts are generated by his simulated plans simply by following traditional redistricting criteria. Updated Barber Rep. at 8-9, Figs. 1 & 2. Thus, Dr. Barber's conclusion that the

2021 Final Plan is a partisan outlier cannot be explained away by any claimed desire to draw districts based on race.

7. In addition, the Commission received significant public feedback and public testimony asking the Commission to honor the integrity of communities of interest—including historical communities of interest—throughout the Commonwealth in the creation of the 2021 Final Plan. Despite this significant testimony, the Commission unnecessarily split several communities of interest, including but not limited to those located in the Cities of Harrisburg and Lancaster, the Borough of State College, and Montgomery Township.

8. The amendment offered by Leader Benninghoff to the House Plan during the February 4, 2022 Commission meeting addressed many of the above problems but was not adopted. It lowered the population deviation from 8.65% to 7.99%. See Updated Barber Rep. at 61, Tbl 4. It lowered the total municipalities split from 56 to 42, and eliminated the unnecessary splits in Allentown, Lancaster, Reading, Harrisburg and State College. Id. See also LDPC Report of 2.4.22 Benninghoff Amendment ("Benninghoff Am."), attached as Appendix B. And in doing so, it increased the voting strength of minority voters. The amendment contained eight majority Black districts, five majority Hispanic districts, and 26 overall majority-minority districts without subordinating traditional redistricting criteria. Updated Barber Rep. at 61-62. It also creates 17 minority opportunity

districts, including four Hispanic "opportunity" districts with a Hispanic voting age population between 35% and 50%. And it did so without explicit consideration of race.

STATEMENT OF JURISDICTION

9. The basis for the jurisdiction of this Court is Section 17(d) of Article II of the Pennsylvania Constitution and 42 Pa. C.S. 725(1), which provides that the Supreme Court shall have exclusive jurisdiction of appeals from the final orders of the Legislative Reapportionment Commission.
10. This appeal is addressed to the Court's appellate jurisdiction and is in the nature of a petition for review pursuant to Rule of Appellate Procedure 3321.

PARTIES

11. Representative Benninghoff is the duly-elected representative for the 171st House District and the Majority Leader of the Pennsylvania House of Representatives and in that capacity is a member of the Commission. He is also a registered voter in Centre County, Pennsylvania. Majority Leader Benninghoff brings this Petition in his capacity as an elected official and as an individual registered voter who is aggrieved by the 2021 Final Plan.
12. The Respondent is the 2021 Legislative Reapportionment Commission.
13. Pursuant to Section 17(b) of Article II of the Pennsylvania Constitution, the Commission is composed of Representative Kerry Benninghoff, the majority

leader of the House of Representatives, Representative Joanna McClinton, minority leader of the House of Representatives, Senator Kim Ward, majority leader of the Senate, Senator Jay Costa, minority leader in the Senate, and Mark A. Nordenberg, the fifth member selected by this Court after the other four Commission members were unable to agree on a fifth member. Mr. Nordenberg served as Chair of the Commission.

DETERMINATION TO BE REVIEWED

14. The determination for which Petitioner seeks review is the constitutionality of the 2021 Final Plan of the Commission approved on February 4, 2022. A copy of the 2021 Final Plan for the Pennsylvania House and the map reflecting the 2021 Final Plan for the House are attached as Appendices C and D. A copy of the 2021 Final Plan for the Pennsylvania Senate and the map reflecting the 2021 Final Plan for the Senate are attached as Appendices E and F.

CONTROLLING CONSTITUTIONAL PROVISIONS

15. Section 16 of Article II of the Pennsylvania Constitution states:

> The Commonwealth shall be divided into 50 senatorial and representative districts, which shall be composed of compact and contiguous territory as nearly equal in population as practicable. Each senatorial district shall elect one Senator, and each representative district one Representative. Unless absolutely necessary no county,

city, incorporated town, borough, township or ward shall be divided in forming either a senatorial or representative district. Pa Const., art. II, § 16.

16. Section 5 of Article I of the Pennsylvania Constitution states:

Elections shall be free and equal; and no power, civil or military, shall at any time interfere to prevent the free exercise of the right of suffrage. Pa. Const., art. I, § 5.

17. Section 29 of Article I of the Pennsylvania Constitution states:

Equality of rights under the law shall not be denied or abridged in the Commonwealth of Pennsylvania because of the race or ethnicity of the individual. Pa. Const., art. I, § 29.

PROCEDURAL BACKGROUND

18. Pursuant to Section 17(a) of Article II of the Pennsylvania Constitution, in 2021, the year following the Federal decennial census, the 2021 Legislative Reapportionment Commission was constituted for the purposes of reapportioning the Commonwealth.

19. Due to delays resulting from the COVID-19 pandemic, the U.S. Census Bureau failed to deliver the decennial census data by the April 1, 2021 deadline. Rather, it did not make the P.L. 94-171 data available for download until August 12, 2021 and the full redistricting toolkit until September 16, 2021.

20. Under Section 17(c) of Article II of the Pennsylvania Constitution, the Commission must file a preliminary reapportionment plan within 90 days after the Commission has duly certified the population data.

21. On August 24, 2021, the Commission by a vote of 3 to 2, decided to reallocate certain prisoners to their address prior to incarceration rather than the address of the prison where they were located. This is the first time in history that the Commission has reallocated prisoners to addresses different from those contained in the Census data.

22. Thus, while the Commission received the Census data on August 12, 2021, and the data was available for use by the Commission on September 17, 2021, the decision to reallocate prisoners caused further significant delays in the process. The data necessary to reapportion the state based upon reallocated prisoners was not complete and certified by the Commission for use until October 25, 2021.

23. Pursuant to Section 17(c) of Article II of the Pennsylvania Constitution, the Commission approved a preliminary reapportionment plan on December 16, 2021 by a 3 to 2 vote for the House map, with Commission Members Ward and Benninghoff dissenting, and a 5-0 vote for the Senate map (collectively, "2021 Preliminary Plan").

24. The Commission held eight public hearings on the 2021 Preliminary Plan between December 16, 2021 and February 4, 2022. During the course of the hearings, citizens and government officials objected to the 2021 Preliminary Plan and/or voiced their opinions about it.

25. Thousands of comments and exceptions to the 2021 Preliminary Plan were submitted by January 18, 2022 online, by mail and to the Commission by the House Republican Policy Committee. In particular, Majority Leader Benninghoff timely submitted his exceptions to the 2021 Preliminary Plan on January 15, 2022.

26. On February 4, 2022, the Commission held a public meeting to vote on the 2021 Final Plan. Before the Commission voted on the 2021 Final Plan, Majority Leader Benninghoff presented the Commission with an amendment that addressed many of the issues with the 2021 Final Plan's failure to comply with the Article II, Section 16 criteria and other issues relating to violations of the Voting Rights Act, the 14th and 15th Amendments to the United States Constitution, and Article I, Sections 5 and 29 of the Pennsylvania Constitution. See Benninghoff Am. Majority Leader Benninghoff's amendment to the 2021 Final Plan was defeated by a three to two vote.

27. With a four to one vote, the Commission approved the 2021 Final Plan on February 4, 2022. Petitioner was the lone dissenting vote, though Leader Ward

expressed her reservations about the House Plan in the 2021 Final Plan.

OBJECTIONS TO THE 2021 FINAL PLAN

28. The Pennsylvania Constitution provides that House and Senate districts should be "as nearly equal in population as practicable." Pa. Const., art. II, § 16. It further provides that "[u]nless absolutely necessary no county, city, incorporated town, borough, township or ward shall be divided in forming either a senatorial or representative district." Id.

29. The evidence submitted to the Commission demonstrates that there are numerous political subdivisions that were unnecessarily split, including unnecessary divisions of the cities of Allentown, Lancaster, Reading, and Harrisburg, and in the Borough of State College. The Commission divided these municipalities purely for partisan gain to create more Democratic-leaning seats.

30. To achieve the goal of "one person, one vote" the average House district should contain approximately 64,053 persons, and the average Senate district should contain approximately 260,054 persons.

31. With total population deviations of 8.65% 5 and 8.11%, respectively for the House and Senate maps, the 2021 Final Plan also fails to create districts that are as nearly equal in population as practicable.

32. Moreover, several House districts in the 2021 Final Plan were drawn predominantly based upon race without a narrowly tailored compelling state interest in violation of the 14th and 15th Amendments to the United States Constitution and Article I, Section 29 of the Pennsylvania Constitution. The 2021 Final Plan thus unnecessarily subjects itself to liability for racial gerrymandering claims.

A. The 2021 Final Plan Divides Numerous Political Subdivisions Where It is Not Absolutely Necessary.

33. The 2021 Final Plan fails to comply with the requirement of Article II, Section 16 of the Constitution that "unless absolutely necessary no county, city, incorporated town, borough, township or ward shall be divided in forming either a senatorial or representative district."

34. The updated report of Dr. Michael Barber demonstrates how the plan unnecessarily divides up cities to combine highly Democratic areas with Republican

If analyzed using the non-adjusted Census data, the population deviation is 9.88%. suburban areas to spread out packed Democratic votes in violation of Article II, Section 16, and Article I, Section 5, of the Pennsylvania Constitution.

35. "Scholarship in political science has noted that the spatial distribution of voters through-out a state can have an impact on the partisan outcomes of

elections when a state is, by necessity, divided into a number of legislative districts. This is largely the case because Democratic-leaning voters tend to cluster in dense, urban areas while Republican-leaning voters tend to be more equally distributed across the remainder of the state." Updated Barber Rep. at 14.

36. "One prominent study of the topic (Chen and Rodden, 2013) finds that 'Democrats are highly clustered in dense central city areas, while Republicans are scattered more evenly through the suburban, exurban, and rural periphery...Precincts in which Democrats typically form majorities tend to be more homogenous and extreme than Republican-leaning precincts. When these Democratic precincts are combined with neighboring precincts to form legislative districts, the nearest neighbors of extremely Democratic precincts are more likely to be similarly extreme than is true for Republican precincts. As a result, when districting plans are completed, Democrats tend to be inefficiently packed into homogenous districts.'" Id. (quoting Rodden, Jonathan A. Why cities lose: The deep roots of the urban-rural political divide. Hachette UK, 2019).

37. "This inefficient distribution of votes would not be a problem for Democrats if district boundaries were able to amble about the state and divide municipalities so as to create districts that had less overwhelming Democratic support.

Rodden (2019) notes this by saying: 'Democrats would need a redistricting process that intentionally carved up large cities like pizza slices or spokes of a wheel, so as to combine some very Democratic urban neighborhoods with some Republican exurbs in an effort to spread Democrats more efficiently across districts' (pg. 155). However, the laws governing redistricting in Pennsylvania run counter to either of these strategies. Pennsylvania's redistricting rules that require districts to be geographically compact and to avoid county and municipal divisions prohibit the type of meandering districts described above." Updated Barber Rep. at 17.

38. The 2021 Final Plan does exactly this in the House Plan as well as the Senate Plan. 1. Allentown

39. Allentown is a heavily Democratic city with a population of 126,364. Updated Barber Rep. at 21. Thus, it must be divided into two districts, but the House Plan divides it unnecessarily into three. Figures 8 & 9 on pages 24-25 of Dr. Barber's updated report illustrates how the 2021 Final Plan carves up Allentown by combining the Democratic areas in Allentown with more Republican areas in the exurbs to create three safe Democratic seats instead of two more homogeneous Democratic-leaning seats—but at the expense of splitting Allentown into three pieces, which is more than is necessary and in violation of the constitution. In addition, the Senate Plan unnecessarily splits

Allentown into two districts—SD-14 and SD-16—not because the population of the City requires such a split (it does not), but rather to carve-up Allentown to create an additional Democratic-leaning district and for partisan political gain. This division also appears to have been performed with race as a predominant motive (as SD-14, one of the districts included in the split, was created as an alleged "minority opportunity district" for Hispanic voters, that the Voting Rights Act does not require, and contains approximately 26.37% Hispanic voting-age population). 2. Lancaster

40. Another example is found in the City of Lancaster, population 58,431, which is divided in half even though its population is small enough that the entire City can be held in one district. Updated Barber Rep. at 27-31, Figs. 12-13. And as a result, heavily Democratic precincts in the City can be combined with more Republican precincts in the City's suburbs. Id. 3. Reading

41. Yet another example is the City of Reading, which was divided into three House districts even though, based on population, it only needed to be split into two House districts. Updated Barber Rep. at 33. The City was unnecessarily split four times into three House districts to gain an additional Democratic-leaning seat by combining portions of the City with more Republican-leaning voters in the suburbs. Id. at 33-35 Figs. 15-16. 4. Harrisburg

42. Even the Commonwealth's Capitol City is not spared. Harrisburg, population of 50,679, can be easily contained within a single House district yet is split—in order to create another Democratic-leaning seat by combining strongly Democratic areas of the City of Harrisburg with more Republican-favoring areas outside the City limits. Updated Barber Rep. at 38-39. This creates two Democratic districts with comfortable margins at the expense of splitting the State Capitol and a community of interest in violation of the Constitution. Updated Barber Rep. at 38- 43, Figs. 19-20. 5. State College

43. State College, home of the Pennsylvania State University, with a population of 40,508 could easily be placed in a single House district but was split into two districts—even dividing the campus of the University—all to draw more and more Democratic districts. Updated Barber Rep. at 47-51, Figs. 25-26. The Commission received well over 100 comments about the splitting of State College but ignored this important feedback. 6. Scranton

44. In the 2021 Preliminary Plan, Scranton was shockingly divided into four House districts despite the fact that by its population it can be contained in only two. Updated Barber Rep. at 44. Although the 2021 Final Plan revised the House districts in this area to divide Scranton into only two House districts, it does so in a manner that generates more Democratic-leaning districts than in 98% of the 50,000 simulated plans. Id. at 44-45 & Fig. 22. 7. Pittsburgh

45. The City of Pittsburgh was also divided into three Senate districts— SD-38, SD-42, and SD-43—for partisan political gain even though, based on population, it only needed to be split once. 8. South Whitehall Township

46. South Whitehall Township in Lehigh County was unnecessarily divided into two districts in the Senate Plan—SD-14 and SD-16—even though the Township could have been kept whole inside one district. This unnecessary division of South Whitehall Township was also performed for partisan political gain.

47. The Commission provided no credible justifications for the division of these cities, townships, and boroughs.

48. Rather, the aggregate of the above examples demonstrates how the 2021 Final Plan gerrymanders districts in urban areas throughout the Commonwealth to pinwheel and pie-up these municipalities to more "efficiently" spread Democratic voters out to maximize the number of Democratic-leaning seats.

49. Drawing lines to intentionally benefit one political party over another, whether to negate a natural disadvantage or not, is still a gerrymander and a violation of Article II, Section 16 and the Free and Equal Elections Clause under Article I, Section 5 of the Pennsylvania Constitution.

50. Article II, Section 16 does not speak of equalizing representation. It "speaks of the 'integrity' of political subdivisions, which bespeaks history and geography,

not party affiliation or expectations." Holt II, 620 Pa. at 413-14. The 2021 Final Plan historically and unconstitutionally splits numerous cities across the state for the purpose of creating extra Democratic-leaning districts and discriminating against Republican-leaning voters throughout the Commonwealth.

51. The 2021 Final Plan contains multiple divisions of political subdivisions that are not "absolutely necessary."

52. At no time did the Commission demonstrate that these divisions were "absolutely necessary" and evidence presented to the Commission proves the contrary.

53. The Commission failed to address, consider or adjust the 2021 Final Plan in accordance with requests from the public regarding these unnecessary splits and generally failed to comply with the mandates of Article II, Section 16 of the Pennsylvania Constitution.

54. The 2021 Final Plan's House Plan splits 56 municipalities a total of 92 times. However, the amendment offered by Petitioner on February 4, 2022 splits only 42 municipalities a total of 76 times – significantly less. Benninghoff Am., Places Split By House Districts at 1. Most notably, the Benninghoff Amendment does not split Harrisburg, Lancaster or State College, and contains the minimum number of splits in Reading and Allentown. Id.; see also

Updated Barber Rep. at 61. The offered amendment demonstrates that numerous splits in the 2021 Final Plan are not absolutely necessary.

B. The 2021 Final Plan Fails To Comply With The One-Person, One-Vote Standard Because It Has Excessive Population Deviation.

55. Article II, Section 16 states that House and Senate districts "shall be . . . as nearly equal in population as practicable." Equality of population is the primary directive in the efforts of the Commission. Holt v. 2011 Legislative Reapportionment Commission ("Holt I"), 614 Pa. 364, 437 (2012). Although a range is permissible, the Supreme Court of Pennsylvania warned that it would not "direct the LRC to develop a reapportionment plan that tests the outer limits of acceptable deviations." Id. at 445.

56. The total population deviation in the 2021 Final Plan for the House is 8.65%. That is significantly higher than the deviation under the current reapportionment plan, approved in Holt II, which is 7.88%. As such, the total population deviation of the 2021 Final Plan for the House districts unnecessarily stretches the bounds of what is permissible. The amendment offered by Petitioner had a population deviation of only 7.99%. See Benninghoff Am.; Updated Barber Rep. at 61. And given that the amendment likewise contains fewer subdivision splits, it cannot be said that a higher

population deviation was needed to lower the number of political subdivision splits.

57. This unnecessary and excessive population deviation reflects yet another subordination of constitutional, traditional districting criteria for partisan advantage. See LWV, 645 Pa. at 122. This is especially true where there is a strong partisan skew to the population deviation that systematically disadvantages Republican voters. The ideal population of a House district is 64,053. Of the 25 most underpopulated districts in the plan, only six are Republican-leaning and 19 are Democratic-leaning. By contrast, of the 25 most overpopulated districts in the plan, 20 are Republican-leaning and only five are Democratic leaning. See Report of 25 Most Under- and Overpopulated Districts, attached as Appendix G. This further demonstrates the intentional spreading out of Democratic voters to generate more Democratic-leaning seats.

58. This skew shows that the district lines were drawn for partisan gain and not based on traditional redistricting principles, and also shows a violation of the Equal Protection Clauses of the U.S. and Pennsylvania Constitutions. See Larios v. Cox, 300 F. Supp.2d 1320 (N.D. Ga. 2004) (three-judge panel), aff'd, 524 U.S. 947 (finding a plan that systematically underpopulated districts in

rural areas and overpopulated districted in suburban areas in order to favor Democrats and disfavor Republicans was unconstitutional).

59. The total population deviation in the 2021 Final Plan for the Senate is 8.11%. That is higher than the deviation under the current reapportionment plan, approved in Holt II, which is 7.96%. As such, the total population deviation of the 2021 Final Plan for the Senate unnecessarily stretches the bounds of what is permissible.

60. Finally, the Commission drew the 2021 Final Plan using 2020 census data that was altered to "reallocate" tens of thousands of prisoners from the prisons where they were counted in the Census, to what is purported to be their pre-incarceration residence. 6 The United States Census Bureau counts incarcerated persons as residents of the district where they are incarcerated and there was no reason to depart from this practice. See Evenwel v. Abbott, 136 S. Ct. 1120 (2016) (approving status quo of using total population from Census for apportionment); Davidson v. City of Cranston, Rhode Island, 873 F.3d 125, 144 (1st Cir. 2016) (concluding that since the U.S. Supreme Court held that use of unadjusted total The Commission's decision to "reallocate" prison populations caused significant delays in a reapportionment process already behind schedule due to the four-and-a-half month delay in the release of Census data. These delays have placed into jeopardy the ability to have a

legislative reapportionment plan in place for the 2022 elections. population is constitutional, there is no reason to think that inclusion of prisoners in total population for apportions is constitutionally suspect).

61. The Pennsylvania Constitution establishing the Commission repeatedly refers to the Federal decennial Census and mentions nothing of any adjustments to that data. Pa. Const., art. II, § 17. Any change to this practice should have been done through a constitutional amendment or statutory enactment by the General Assembly.

62. No state has established a policy regarding prisoner reallocation for reappointment purposes absent legislative action.

63. The use of this altered Census data to reapportion the General Assembly has resulted in further departures from the population equality requirements of the Pennsylvania and U.S. Constitution, further violating the rights of voters throughout the Commonwealth. Indeed, if analyzed using the original, unaltered Census data, the total population deviation in the 2021 Final Plan's House Plan is 9.88% and in the 2021 Final Plan's Senate Plan is 8.49%.

64. Moreover, it caused further delays with the adoption of the 2021 Final Plan, placing the ability to use such districts for the 2022 election cycle in jeopardy.

C. The 2021 Final Plan Excessively Pairs Republican Incumbents in the House Plan, Which Further Demonstrates That The 2021 Final Plan

Was Drawn Intentionally for Unfair Partisan Gain

65. As additional evidence that the 2021 Final Plan was drawn for the benefit of Democrats, it pits eight Republican incumbents against each other and only two Democrat incumbents against each other in the House. See Report of Paired Incumbents, Appendix H. In addition, it creates five districts where a Republican incumbent is paired against a Democratic incumbent in the House. But in all five of those districts, the Democrat incumbent has a significant advantage, whether measured by having a greater percentage of that Democrat incumbent's prior district included in the new district or by way of having more registered Democratic voters than registered Republican voters in the district. This cannot have been by accident, and the deliberate and excessive pairing of Republican incumbents is further evidence of discrimination against Republican voters and the subordination of traditional and constitutional redistricting criteria for partisan favoritism. If the Commission is going to pair incumbents, it should not systematically favor one political party. See Larios, 300 F. Supp.2d 1320 (recognizing that the plans also systematically paired Republican incumbents while reducing the number of Democrat incumbents who were paired).

D. The 2021 Final Plan Violates The Fourteenth and Fifteenth Amendments to the United States Constitution, The Voting Rights Act,

And Article I, Section 29 of the Pennsylvania Constitution

66. Proponents of the 2021 Final Plan have argued that the plan for the House was drawn with the intent and design of creating more opportunities for minority voters to elect the representatives of their choice. Thus, race was purported to be the predominant factor governing the creation of the 2021 Final Plan for the House.

67. The U.S. Supreme Court has held that "the Fourteenth Amendment requires state legislation that expressly distinguishes among citizens because of their race to be narrowly tailored to further a compelling governmental interest." Shaw v. Reno, 509 U.S. 642, 643 (1993). "[A] plaintiff challenging a reapportionment statute under the Equal Protection Clause may state a claim by alleging that the legislation, though race neutral on its face, rationally cannot be understood as anything other than an effort to separate voters into different districts on the basis of race, and that the separation lacks sufficient justification." Id. at 649. A plaintiff alleging a racial gerrymandering claim need only show that race was the "predominant factor motivating the legislature's decision" which requires proving that the legislature subordinated traditional race-neutral districting criteria to racial considerations. Bethune-Hill v. Va. State Bd. of Elections, 137 S. Ct. 788, 792 (2017).

68. It has been posited that the racial intent driving the creation of the 2021 Final Plan for the House is consistent with the federal Voting Rights Act of 1965. "But in the context of a Fourteenth Amendment challenge, courts must bear in mind the difference between what the law permits and what it requires." Shaw, 509 U.S. at 654. And if the state is going to invoke the Voting Rights Act to justify race- based redistricting, it must show that it has "a strong basis in evidence" for concluding it was required. Alabama Legislative Black Caucus v. Alabama, 125 S. Ct. 1257, 191 L. Ed. 2d 314, 335 (2015).

69. Further, Article I, Section 29 of the Pennsylvania Constitution, adopted by the voters in 2021, provides that "[e]quality of rights under the law shall not be denied or abridged in the Commonwealth of Pennsylvania because of the race or ethnicity of the individual." In the Plain English Statement describing this new amendment, Pennsylvania's Attorney General wrote: "Inclusion of this amendment within the Pennsylvania Constitution signifies that freedom from discrimination based on race or ethnicity is an essential principle of liberty and free government. This amendment applies to all Pennsylvania state, county and local governmental entities, and guarantees equality of rights under the law. ... This equal right to be free from racial or ethnic discrimination will exist independent from any such rights under the United States Constitution or corresponding federal law."

70. Throughout the Commission's work, there was a clear focus on drawing districts on the basis of race. For example, during one meeting on November 16, 2021, a member of Leader McClinton's staff circulated a sheet analyzing certain proposed districts in or about Bucks County. The sheet included rows listing the number of "35% or Higher 18+ Black Seats," "35% or Higher 18+ Hispanic Seats," and "35% or Higher 18%+ Coalition (Black, Hispanic, Asian Combined) Seats." See Appendix I. This fixation on the creation of districts throughout the Commonwealth with threshold levels of minority group voting-age population permeated the Commission's work.

71. The Commission Chair has acknowledged that it drew several House districts on the basis of race. Chair Nordenberg testified at the December 16, 2021 hearing that "the plan includes seven minority opportunity districts—true VRA districts, minority influence districts, and collation districts—in which there is no incumbent, creating special opportunities [for] the election of minority representatives."7 Those districts included Districts 10 8, 22, 54, 104, 116, and 203. Id. 9 As the Chair further testified, "there is no incumbent-advantage that will need Written Testimony of the Commission Chair, Dec. 16, 2021, p. 12, available at https://www.redistricting.state.pa.us/resources/press/20211216%20Chairman's%20Statement%2 0LRC%20Meeting%20121621.pdf. Was House District 9 in the 2021 Preliminary Plan. The Commission Chair only listed six

districts in his written remarks. However, House Districts 19 and 49 (was House District 50 in the 2021 Preliminary Plan) also appear to satisfy the Chair's criteria, getting to a total of eight districts. to be overcome in any of these districts, which should give the minority communities residing in them a special opportunity." Id. at 13. Thus, the Chair has openly stated that these districts were drawn with race as the predominant factor.

72. At the February 4, 2022 hearing at which the Commission voted to adopt the 2021 Final Plan, Chair Nordenberg stated:

> When circumstances permitted us to do so, and after ensuring compliance with state and federal law, we fashioned districts to create additional opportunities beyond the minimum requirements of the Voting Rights Act, positioning voters in racial and ethnic minority groups to influence the election of candidates of their choice. Going beyond those minimum requirements not only is consistent with the Voting Rights Act, but is consistent with, and perhaps required by, both the Free and Equal Elections Clause and the Racial and Ethnic Equality Clause of the Pennsylvania Constitution.10 (emphasis added). This is a tacit admission that the 2021 Final Plan drew voters into districts based upon their race and when not required by the Voting Rights Act.

73. In addition, during conversations with the Chair's map drawer following adoption of the 2021 Preliminary Plan, proposed changes to House Districts 105 and 125 in Dauphin County to reduce municipal splits were rejected because any changes would purportedly lower the minority voting age population to an unidentified unacceptable number. This further demonstrates that the 2021 Final Plan illegally draws to a racial target.

See Feb. 4, 2022 LRC Hearing at 0:09, available at http://aws.redistricting.state.pa.us/Redistricting/Resources/Press/2022-02-04%20LRC.mp4 74. In particular, certain members of the Commission have been outspoken regarding the creation of "coalition" districts that are nowhere required by the Voting Rights Act. As Chair Nordenberg testified at the February 4, 2022 hearing: "In addition to preserving and expanding districts in which a racial minority group makes up the majority of the population, the preliminary plan takes the important step of including coalition districts." 11 75. In this case, the only evidence proffered to justify the Commission's explicit and predominant use of race in the construction of the 2021 Final Plan for the House was an expert report by Matthew Barreto, Ph.D. But as a matter of law, Professor Barreto's report fails to show the existence of legally significant racially polarized voting, in part because he has not studied a sufficient number of elections (including primary elections) to generate a reliable pattern of voting behavior by any of his groups; because he has improperly lumped together

Black, Hispanic, and other minority voters into an aggregate all-minority metric for his analysis, which means he cannot demonstrate each racial group votes cohesively as a group, and with the other minority groups in the coalition; and because he has not shown evidence that all three Gingles preconditions are satisfied anywhere in the Commonwealth. Thornburg v. Gingles, 478 U.S. 30, 50-51 (1986). Most notably of all, Professor Barreto admitted, under questioning by Leader Benninghoff on January 14, 2022,

Id. at 42:20. that his analysis did not identify legally significant racially polarized voting in the Commonwealth—meaning, that there was no evidence that white-bloc oppositional voting prevented minority voters from usually being able to elect the representatives of their choice.12

76. Further, Professor Barreto's report has been criticized by a leading political methodologist and Voting Rights Act expert, Professor Jonathan Katz, who issued a report dated Jan. 14, 2022 (the "Katz Report," provided to the Commission at the January 14, 2022 hearing), concluding that due to several methodological flaws, more fully set forth in his report, "Dr. Barreto's analysis of racially polarized voting is statistically flawed and no scientifically valid inferences may be drawn from it." Katz Rep. at 1. Dr. Katz updated his report after analyzing the 2021 Final Plan and concluded that nothing about the 2021

Final Plan changed his original analysis. See Updated Katz Report, dated Feb. 4, 2022, attached as Appendix J.

77. The analysis performed by Professor Barreto does not constitute a strong basis in evidence for the creation of majority-minority districts anywhere in the Commonwealth, let alone "coalition" districts. And the Commission has no other evidence to support its predominant use of race in drawing House districts in the 2021 Final Plan.

See Jan. 14, 2022 LRC Hearing at 1:53, available at: http://aws.redistricting.state.pa.us/Redistricting/Resources/Video/11422-LRC-2.mp4 (last visited Feb. 9, 2022).

78. The Commission has also attempted to justify the extreme partisan bias exhibited by the 2021 Final Plan for the House due to racial considerations, a position it supported with written testimony dated Jan. 14, 2022 and an expert report dated Jan. 7, 2022 from Kosuke Imai, Ph.D. (the "Imai Testimony" and the "Imai Report"). Professor Imai ran a set of computer simulations and purports to demonstrate that the partisan bias exhibited in the Preliminary House Plan was explained by the fact that the Preliminary House Plan contains 25 majority-minority districts, including several so-called "coalition" districts (i.e., districts drawn so that a combination of racial groups together makes up 50% or more of the citizen voting- age population), even though the Third Circuit has never held that claims under the Voting Rights Act may be brought

by a "coalition" of multiple racial groups, and the Sixth Circuit has rejected that claim outright. Nixon v. Kent Cty., 76 F.3d 1381 (6th Cir. 1996) (en banc).

79. But as Professor Barber demonstrated in his testimony (Barber Presentation Deck, Jan. 14, 2022, at p. 21), and in his updated report (at 8-9 & Figs. 1-2) more than 50% of his race-blind computer simulated plans contained at least 24 majority-minority districts (the 2021 Final Plan has 25), and more than 50% of his race-blind computer simulated plans generated 17 or more districts with at least 35%, but less than 50%, minority voting-age population (the 2021 Final Plan has 19). Professor Barber showed that drawing districts on the basis of race was not necessary to achieve a wealth of majority-minority districts or districts with 35% minority voting-age population. Thus, the number of Democratic-leaning seats generated by the 2021 Final Plan was not the result of attempting to generate districts that gave minorities more opportunities to elect candidates of their choice.

80. In addition, the amendment offered by Leader Benninghoff contained eight majority Black districts (one more than the 2021 Final Plan), five majority Latino districts (one more than the 2021 Final Plan), and 26 overall majority-minority districts (one more than the 2021 Final Plan) without subordinating traditional redistricting criteria. Updated Barber Rep. at 8, 61-62. It also creates 17 minority opportunity districts, including four districts with a

Hispanic voting age population between 35% and 50% - two more than the 2021 Final Plan. See id. at 8, 61-63. And it did so without explicit consideration of race.

81. Moreover, as other evidence has shown, the 2021 Final Plan's splitting of various cities and urban areas in numerous House districts acts to "crack" and dilute minority communities for the purpose of Democratic partisan gain.

82. In Allentown, the 2021 Final Plan divides the city three different ways and cracks the Hispanic vote into three different House districts. Updated Barber Rep. at 26, Fig. 10. District 22 is a majority-Hispanic district, but has a lower Hispanic voting age population (53.3%) than the current district at 54.5%. Id. Thus, despite the growth of the Hispanic population in Allentown and the surrounding area, HD-22 in the 2021 Final Plan has a lower HVAP than the current plan. The Benninghoff amendment eliminates the extra, unnecessary split of Allentown. Id. at 61.

83. The Commission received written testimony from LatinoJustice raising concerns with the Latino Community's ability to elect candidates of their choice given the way its members are cracked in Allentown under the 2021 Preliminary Plan. 13

84. The Commission received further testimony from the Hispanic community that while on paper the 2021 Preliminary Plan creates districts that may look

good for the Hispanic community, it does not create districts that enhance the opportunity of Hispanics to elect the candidates of their choice. 14 Nothing in the 2021 Final Plan addresses these concerns raised with the 2021 Preliminary Plan.

85. As one example, in the 2020 primary election, Representative Schweyer defeated Enid Santiago – a Hispanic candidate – by just 55 votes in the primary for HD-22. Yet, the 2021 Final Plan reduces the percentage of HVAP in HD-22 and the remaining two districts which include a part of Allentown and have

See Written Testimony from LatinoJustice at 2-3, attached as Appendix K.

Testimony of Victor Martinez, Jan. 6, 2022 LRC Hearing at 2:09, available at http://aws.redistricting.state.pa.us/Redistricting/Resources/Video/1-6-22%20LRC%20Session%201.mp4. an HVAP of just 38.4% and 15.1%, respectively. Updated Barber Rep. at 26, Fig. 10.

86. Despite this testimony, the 2021 Final Plan failed to address these concerns.

87. Similarly, HD-180 in Philadelphia has an Hispanic voting age population of 27,701 in the current plan, but was reduced to only 27,008 people in the 2021 Final Plan – 693 less potential Hispanic voters.

88. The same is also true in Lancaster. The City of Lancaster has an Hispanic voting age population of 35.9%. Yet instead of keeping Lancaster whole, the

2021 Final Plan divides it and creates two house districts with lower Hispanic voting age populations of 12.8% and 34.3%, respectively. Updated Barber Rep. at 32, Fig. 14. Thus, rather than strengthen the minority vote here, the 2021 Final Plan reduces it. The Benninghoff amendment eliminates the split of Lancaster. Id. at 61.

89. The City of Reading, which has an Hispanic voting age population of 64%, is similarly divided in a way that reduces the voting strength of the Hispanic community. The City of Reading is divided into three House districts, each with a significantly lower HVAP: 33.2% in HD-126, 34.4% in HD-129, and 52.1% in HD- 127. Updated Barber Rep. at 37, Fig. 17. The Benninghoff amendment eliminates the unnecessary split of Reading. Id. at 61. 90. In particular, the 2021 Final Plan reduced the Hispanic voting age population in HD-127 from 31,822 people in the current plan to 23,915 people in the 2021 Final Plan. 91. As LatinoJustice submitted via their written testimony to the Commission regarding these reductions: "A reduction in the voting age population of Latinos will impede the ability of Latinos to elect a candidate of their choice."15 92. The Black community is likewise cracked in certain areas. For example, the City of Harrisburg has a Black voting age population of 47.3%. Yet, despite the fact that the City of Harrisburg and its Black population could be contained all in one House district, it is split into two

districts with a BVAP of 19.1% and 27.4%, respectively. Updated Barber Rep. at 43 Fig. 21. The Benninghoff amendment eliminates the split of Harrisburg. Id. at 61. 93. For all these reasons, the 2021 Final Plan infringes the rights guaranteed to citizens of the Commonwealth under the Fourteenth and Fifteenth Amendments to the United States Constitution, the federal Voting Rights Act, and Article I, Section 29 of the Pennsylvania Constitution.

E. Specific Additional Objections 94. Many municipal splits throughout the 2021 Final Plan are not absolutely necessary and reflect a subordination of traditional, constitutional

See LatinoJustice Written Testimony at 3. districting criteria for partisan advantage—including, without limitation, the following: (a) Plum Township and Upper St. Clair Township in Allegheny County; (b) Lancaster City in Lancaster County; (c) two municipal splits in House District 189: Stroud Township and Middle Smithfield Township in Monroe County; and (d) Harrisburg in Dauphin County.

95. The separation of the City of Johnstown in Cambria County from HD- 71 was not justified by traditional, constitutional redistricting criteria and reflects a subordination of those criteria for partisan advantage.

96. Remove the municipal split of State College Borough in Centre County that is not absolutely necessary, and remove the Harrisburg based HD-103 from

Cumberland County, in order to comply with the population equality requirement of Article II, Section 16 of the Pennsylvania Constitution and the U.S. Constitution and to not subordinate such criteria to partisan gain.

97. It is necessary to reduce the three district splits in Allentown and Reading to two district splits in each city, because these excessive municipal splits are not absolutely necessary and reflect a subordination of traditional, constitutional districting criteria for partisan advantage. Additionally, reducing these splits will avoid diluting the Hispanic voting age population for the two Reading districts and the two Allentown districts and will additionally remove the municipal split of Upper Macungie Township in Lehigh County that is not absolutely necessary.

98. Remove the split of Montgomery Township in HD-151 that was done for partisan gain and that unnecessarily splits the Wissahickon School District and reduces the Korean population in this House district over hundreds of exceptions, including exceptions by several Korean citizens requesting that the Assi Plaza be kept with the rest of Montgomery Township, Horsham and Upper Dublin.

REQUEST FOR RELIEF

99. For the foregoing reasons, Petitioner asks this Court to determine that the 2021 Final Plan is contrary to law under Article I, Section 5, Article I,

Section 29, and Article II, Section 16 of the Pennsylvania Constitution, the Voting Rights Act, and the Fourteenth and Fifteenth Amendments to the United States Constitution and to remand the 2021 Final Plan to the Commission with direction to make the following revisions: a. Eliminate the unnecessary splits of political subdivisions including in the cities of Allentown, Lancaster, Reading, Harrisburg, and the Borough of State College in the House map and within Allegheny County, Lancaster, and South Whitehall Township in the Senate map; b. Reduce the total population deviation in both the House and Senate maps; c. Redraw the legislative district lines without race as a predominant factor unless and until there is an identified compelling state interest; d. Redraw the legislative districts so that they do not subordinate traditional redistricting criteria for partisan gain; e. Address the remaining issues raised in this Petition.

100. Issue an order that because the Commission failed to timely adopt a reapportionment plan that meets the requirements of the Pennsylvania Constitution, the 2022 elections for the Pennsylvania General Assembly must occur under the districts adopted in 2012 pursuant to the Application for Relief to be submitted forthwith in this action.

Respectfully submitted,

this February 17, 2022.

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BAKER & HOSTETLER LLP
Counsel for Petitioner

CERTIFICATE OF COMPLIANCE

I hereby certify that this petition complies with Pa.R.A.P. 124, 127 and 1516 of the Pennsylvania Rules of Appellate Procedure. It contains 8216 words, excluding the cover page, table of contents, table of authorities, signature blocks, and this certificate (Pa.R.A.P. 2135(d)).

CERTIFICATE OF FILING AND SERVICE

I hereby certify that on the _____ I electronically filed the foregoing with the Prothonotary of the Supreme Court of Pennsylvania, and that on the _____ I served true and correct copies of it on the following counsel of record: